Tamil Nadu Electricity Board vs Central Electricity Regulatory ... on 6 November, 2009

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

Appeal No.131 of 2009 &
IA No. 244 of 2009

Dated: 6th November, 2009

Present : Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. H.L. Bajaj, Technical Member

Tamil Nadu Electricity Board ... Appellant (s)
Versus
Central Electricity Regulatory Commission & Ors. ... Respondent (s)

Counsel for the Appellant/ (s): Mr. R. Venkataramani, Sr. Advocate
Mr. R. Nedumaran
Mr. C.K.R. Lemin Sekar
Counsel for the Respondent (s): Mr. M. G. Ramachandran
Mr. Anand K. Ganesan
Ms. Swapna Seshadri for NTPC

ORDER

The delay of 75 days is condoned. I.A. No. 244/09 is disposed of. However, we do not find any merit in the appeal, since it is pointed out by the Ld. Counsel for the Respondent that the order Impugned is only the implementation of the Order earlier passed by this Tribunal while disposing of a batch of appeals No. 81, 82 etc. of 2005 on 22/1/07 covering the point raised in the present Appeal.

Hence, the Appeal is dismissed.

(H.L. Bajaj)
Technical Member

(Justice M. Karpaga Vinayagam)
Chairperson